

Patterson v. Jenks.

The treaty made with the Cherokees, at Augusta, on the 1st day of June 1783, is apparently intended to establish the same line which was afterwards adopted in the treaty with the Creeks. The only variance in the language is, that in the treaty with the Cherokees, the line from the source of the southern branch of the Oconee river, is to run "down the middle of the said branch;" in the treaty with the Creeks, it is to run "down the river." It is not probable, that different lines could have been intended.

If the state of Georgia has construed this treaty by any subsequent *231] acts manifesting her understanding of it, we should not hesitate to adopt that construction in this case. But the bill of exceptions contains no fact, showing that Georgia has adopted a construction of her treaties with the Indians, which would establish the boundary claimed by the plaintiff. On the contrary, in February 1787, an act was passed "for the appointment of commissioners to run the line designating the Indian hunting-grounds.." This act directs the commissioners to proceed, in conjunction with those to be appointed by the Creek nation, to trace and mark "the temporary boundary line, as heretofore established; that is to say, from the Currohee mountain, in the direction of the present temporary line from Zugalo river, till the same shall strike the head or source of the main direct stream of the south branch of Oconee river, called also Appalachie, by which is to be understood the main fork of Oconee river, next above Little river." This act seems to reject all claim, on the part of Georgia, to lands lying south of the main stream of the south branch of Oconee, and to adopt the construction of the treaties at Augusta, which appears to have been adopted by the commissioners of the United States, at the treaty at Hopewell, in 1785.

The prayer we are considering, also requested the court to instruct the jury that the tract of land granted to Basil Jones was within the limits of Franklin county as by law defined. In February 1784, the legislature passed an act for laying off two more counties to the westward. One of these was the county of Franklin. The first section declares, "that the present temporary line, circumscribing the Indian hunting-ground, shall be marked by a line drawn from that part of the north branch of Savannah river, known by the name of the Owee, which shall be intersected by a line north-east from the Oconee mountains; thence in the same direction to Zugalo river; from thence, in a direct line, to the top of Currohee mountain; thence to the head or source of the most southern stream of the Oconee river, including all the waters of the *same; thence down the *232] said river to the old line, thence along the old line." The only difference between this legislative description of the line, circumscribing the Indian hunting-ground, and that in the treaty, is in the substitution of the word "stream," for the word "branch." In the treaty, "the branch," and in the law, "the stream," appeared to be considered as "the river." The line is to run from its source "down the said river." This language would seem to indicate that a considerable, or main branch, or stream—one which had acquired the name of river—not a small rivulet, was in the mind of the legislature. The line which runs to it from the top of the Currohee mountain is subject to all the uncertainty which attends the same line, as described in the treaty of Augusta.

The second section of the act proceeds to define the exterior lines of the